STANDARD OPERATING PROCEDURE			G-6310
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **05/05/16**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES			
SUBJECT ELECTRONIC RESTRAINTS	CROSS REFERENCE G-6110 USE OF FORCE REPORTING REQUIREMENTS G-6400 CUSTODIAL DEATH PREVENTION			

I. Purpose:

The purpose of this policy is to establish the guidelines for the use of electronic restraint devices (ERD).

II. Policy:

The Sarpy County Sheriff's Office recognizes the need to safely and securely move inmates under its custody, as well as the need to protect the safety and integrity of the criminal justice system. The electronic restraint device has been demonstrated to be an effective tool in the prevention of assaults and escapes by inmates during transportation and court appearances. An ERD shall only be used in accordance with this policy.

III. Definitions:

A. ELECTRONIC RESTRAINT DEVICE (ERD): An electronic restraint device (ERD) is a remotely operated restraint that when activated generates an electronic pulse that temporarily interrupts the voluntary muscle control of the subject wearing the device.

IV. Procedures:

A. Electronic Restraint Device-General Procedures:

1. An ERD shall only be used with the specific approval of a command officer or supervisor.

2. If an ERD is applied for any reason, the supervisor or command officer authorizing its use shall notify a court services command officer.

3. The Court Services Supervisor shall maintain an ERD file. The file shall contain all forms and documentation regarding any use of ERDs.

4. Unauthorized use of any ERD is prohibited.

5. ERDs shall not be used to coerce, harass, abuse, or punish any person.

B. **Authorized Users:** No deputy shall apply, operate or trigger an ERD without having completed the authorized training.

1. Training shall consist of classroom and practical instruction on the components and proper use of an ERD.

2. Only certified ERD instructors shall provide ERD training.

3. ERDs shall only be used in accordance with Sheriff's Office training and procedures.

4. The Court Services Supervisor shall maintain a list of all ERD trained deputies.

C. **Application of ERD for Transportation:** With approval of an appropriate command officer or supervisor, an ERD may be applied to any inmate in the custody of the Sheriff's Office for movement and transportation. Reasons for the application of an ERD include, but are not limited to:

1. Inmates who are violent or have exhibited violent behavior in the past.
2. Inmates who may be an escape risk, have documented escapes or attempted escapes, or who have indicated intent to escape.
3. Inmates held on a capitol crime.
4. Inmates who must be transported out of state on a common carrier.
5. Inmates who are suicidal or who have expressed suicidal thoughts.

D. **Application of ERD for Court:**

1. The decision to apply an ERD to any inmate who is appearing before a judge or jury rests with the presiding judge. The judge shall make the determination based on the totality of the circumstances.

a) If a judge orders the use of an ERD on an inmate appearing in court, the deputy providing security shall immediately notify his or her supervisor.

b) In compliance with the order of the court, all applicable procedures shall be followed.

2. When any employee believes an ERD may be necessary for an inmate appearing in court, he or she should notify a supervisor.

a) If the supervisor approves the ERD use, the appropriate motion shall be made to the court by the Court Services Supervisor.

b) Reasons for requesting an ERD for a court appearance may include, but are not limited to:

(1) The inmate has been violent at past court appearances.
(2) The inmate has threatened violence toward any participant in the scheduled court appearance.
(3) The inmate is an escape risk, has documented escapes or attempted escapes, or has indicated intent to escape.

E. Preparation of ERD for Use:

1. Once the use of an ERD has been approved, the Court Services Supervisor shall be notified.

2. The Court Services Supervisor shall ensure a deputy completes the Medical Chart Review form, Inmate Notification form, and Application Checklist prior to the ERD being applied to the inmate.

a) Deputies shall not use or apply an ERD on any person with any of the following conditions:

(1) The person has any neurological disease to include muscular dystrophy, multiple sclerosis, or epilepsy.

(2) The person suffers from severe heart disease, heart problems, or arrhythmias requiring medication.

(3) The person is pregnant or post-partum (6 weeks or less).

(4) The person is under eighty (80) pounds in body weight.

b) Medical Chart Review form:

(1) The form shall be delivered or faxed to the Jail Medical Unit. Medical staff shall have the form completed and signed by a physician. Once signed, the medical staff shall return the form to the deputy.

(2) The deputy shall forward the completed form to the Court Services Supervisor for inclusion in the ERD file.

(3) A copy of the completed form shall be returned to the Medical Unit for inclusion in the inmate's medical file.

c) Inmate Notification form: If an inmate is medically cleared to wear an ERD, the assigned deputy shall:

(1) Read the Inmate/Defendant Notification form to the inmate and have him or her sign the form.

(2) Sign the form.

(3) Forward the form to the Court Services Supervisor for inclusion in the ERD file.

(4) If the inmate refuses to sign the form, the deputy shall write "refused to sign" on the signature line, note the date and time, sign the form and have a second deputy sign the form as a witness.

d) Application Checklist form:

(1) Prior to applying the ERD, the deputy shall complete the Application Checklist form.

(2) The form shall be forwarded to the Court Services Supervisor for inclusion in the ERD file.

F. **ERD Activation:** The decision to activate the ERD constitutes a use of force and must be objectively reasonable for the situation in which it is used. The ERD is considered an intermediate weapon.

1. An ERD may be activated if an inmate:

a) Makes any sudden or hostile movements that the deputy reasonably believes are a threat to a person or security.

b) Tampers with the restraint.

c) Fails to comply with a lawful command to stop an activity the deputy believes may threaten the public safety or security.

d) Attempts to escape custody.

e) Moves in such a way that the deputy loses view of the inmate's hands and the inmate refuses to show his or her hands when requested by the deputy.

f) Commits an act that may reasonably be deemed an assault against any person within the courtroom or in the immediate proximity of the inmate.

G. Post ERD Activation:

1. Any deputy activating an ERD (including accidental discharges) shall immediately notify his or her supervisor. If possible, the supervisor shall respond to the scene.

2. The supervisor shall notify the on-duty watch commander or ADC.

3. The activating deputy shall closely monitor the inmate for signs of injury or adverse effects (see also G-6400 Custodial Death Prevention).

4. In the event the inmate appears to have suffered an injury or adverse effect, he or she shall be transported as soon as practical to a location where medical treatment may be provided.

5. If the inmate does not appear to be injured or suffering any adverse effects, he or she shall be examined by the Medial Unit upon returning to the Jail.

6. The on-scene supervisor or the activating deputy shall photograph the subject and the ERD application area as well as any secondary injuries resulting from the use of the ERD. If possible, photographs should be taken prior to removal of the ERD.

H. Reporting: With the exception of training, deputies shall document all uses of the ERD (including accidental discharges) in accordance with Sheriff's Office use of force reporting requirements (see G-6110 Use of Force Reporting Requirements).

1. On all operational deployments, the Use of Force Report form shall include:

a) A brief description of the incident.
b) The ERD serial number.
c) The number and duration of "activations" used on the subject.
d) The distance the deputy was from the subject.
e) Location of the ERD.
f) Medical treatment, if any, provided to the subject.
g) A description of the subject's actions after the ERD activation.
h) A description of any injuries sustained by the subject including secondary injuries that may have occurred.

2. Deputies accidentally discharging an ERD shall complete an information report containing all relevant information required for a Use of Force Report form.

3. Deputies activating an ERD shall also complete an Activation Incident Report form. The Activation Incident Report form and photographs shall be forwarded to the Court Services Supervisor for inclusion in the ERD file.

I. ERD Inspection and Maintenance:

1. A court services supervisor shall be responsible for ensuring the ERD carriers, power units and chargers are in good working order.

2. A certified ERD operator shall inspect all units at least quarterly.

3. A maintenance log shall be kept with the ERD equipment.

a) The log shall contain all information regarding the date of the most recent inspection, charging, battery changes and/or maintenance on ERD units.

4. Only certified ERD operators shall perform maintenance on any of the ERD units.